BERO TECHNOLOGIES PRIVATE LIMITED

TERMS & CONDITIONS

1. Introduction and Binding Agreement

These Terms and Conditions (hereinafter referred to as the "Agreement" or "Terms") constitute a legally binding contract between Bero Technologies Private Limited, a company incorporated under the provisions of the Companies Act, 2013, having its registered office in India (hereinafter referred to as "Bero", "Company", "We", "Us", or "Our"), and the users of the Bero digital marketplace (hereinafter referred to as "User", "You", or "Your"). This Agreement governs Your access to and use of the Bero mobile applications, websites, technology infrastructure, application programming interfaces, and related digital services (collectively, the "Platform").

By downloading, installing, registering on, or accessing the Platform, You expressly acknowledge that You have read, understood, and agree to be bound by all the stipulations contained within these Terms, along with all associated policies including the Liability Disclaimer, Dispute Resolution Policy, Worker Responsibility Policy, and Privacy Policy, which are incorporated herein by reference. This document is an electronic record generated by a computer system and does not require any physical or digital signatures for its validity, standing in full compliance with the Information Technology Act, 2000, and the Consumer Protection (E-Commerce) Rules, 2020. If You do not unconditionally agree to these Terms, You are expressly prohibited from accessing or using the Platform.

2. Definitions and Interpretations

For the purposes of this Agreement, the following capitalized terms shall have the meanings ascribed to them below:

2.1. **"Bipartite Graph Matching Algorithm"** refers to Bero's proprietary computational framework, operating on a variant of the Kuhn-Munkres (Hungarian) algorithm and modified Gale-Shapley Deferred Acceptance algorithm, which processes service requests in batching windows to determine optimal pairings based on utility weighting.

2.2. **"Client"** or **"Consumer"** means any individual or corporate entity that registers on the Platform to request, book, and receive hyper-local physical services.

2.3. **"Dynamic Pricing Engine"** signifies the algorithmic pricing system deployed by Bero that adjusts the final payable consideration based on real-time market tightness, utilising a Bayesian Hierarchical Model to estimate the price elasticity of demand across specific geographic zones.

2.4. **"Escrow Account"** means the nodal or escrow bank account maintained by Bero with a Scheduled Commercial Bank in India, established in strict compliance with the Reserve Bank of India (RBI) Master Direction on Regulation of Payment Aggregators, to hold and segregate funds in trust until the completion of the underlying transaction.

2.5. **"H3 Spatial Index"** refers to the hierarchical hexagonal geospatial mapping logic utilised by the Platform for near-instantaneous spatial lookups, effective supply density calculations, and dispatch proximity determinations.

2.6. **"Service Professional"** or **"Worker"** denotes an independent, third-party contractor who registers on the Platform to offer their hyper-local vocational services (including but not limited to plumbing, carpentry, and electrical repair) to Clients.

2.7. **"Service Request"** refers to an explicit booking initiated by a Client for a specific task at a designated geographical location within the Platform's operational territory.

3. Nature of the Platform and Safe Harbour Protections

3.1. The Platform operates strictly as an electronic commerce marketplace and a technology intermediary as defined under Section 2(1)(w) and Section 79 of the Information Technology Act, 2000, read alongside the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021. Bero's sole function is the provision of an information technology framework that facilitates discovery, algorithmic matching, and secure payment processing between independent Service Professionals and Clients.

3.2. Bero does not provide physical services, function as a service contractor, employ Service Professionals, or act as an agent for either the Client or the Service Professional. The contract for the provision of any physical service is strictly a bipartite agreement executed directly between the Client and the Service Professional. Bero is not a party to this underlying service contract and assumes no fiduciary duty or contractual liability for the execution of the physical work.

4. User Eligibility and Account Registration

4.1. To access and utilise the Platform, You must be at least eighteen (18) years of age and possess the legal capacity to enter into a binding contract as prescribed by the Indian Contract Act, 1872. By completing the registration process, You represent and warrant that You meet these eligibility criteria.

4.2. Users are required to create a secure account by providing accurate, current, and complete information. Service Professionals must undergo a mandatory Know Your Customer (KYC) verification protocol, which includes Aadhaar-based identity authentication and background checks, to preserve ecosystem integrity and adhere to the Consumer Protection (E-Commerce) Rules, 2020.

4.3. You are solely responsible for maintaining the confidentiality of Your account credentials. Bero shall not be liable for any unauthorized access to Your account resulting from Your failure to safeguard Your login information.

5. Algorithmic Service Booking, Dispatch, and Acceptance

5.1. The User acknowledges and expressly consents that Bero does not utilise a standard "First-Come-First-Served" (FCFS) routing mechanism. Upon the submission of a Service Request by a Client, the Platform processes requests within batching windows to execute a Maximum Weight Perfect Matching.

5.2. The matching utility is a composite mathematical function derived from multiple variables, including but not limited to, H3 geospatial proximity, Bayesian Reputation scores, specific skill matching, and calculated wait times.

5.3. To prevent circumvention and market leakage, the Platform enforces a stability condition via a modified Gale-Shapley Deferred Acceptance Algorithm, adjusting for spatial decay and switching costs. By using the Platform, You agree that Bero's algorithm is the sole determinant of dispatch allocation and that Bero makes no guarantee regarding the availability of a specific Service Professional at any given time.

5.4. A legally binding contract for the requested service is formed between the Client and the Service Professional exclusively when the matched Service Professional affirmatively accepts the Service Request via the Platform interface.

6. Pricing Structure and Dynamic Pricing Disclosures

6.1. In accordance with Rule 4(3) and Rule 5(5) of the Consumer Protection (E-Commerce) Rules, 2020, Bero is committed to complete pricing transparency. The total consideration payable for a Service Request shall consist of the base service fee, any applicable statutory taxes (including Goods and Services Tax), and a Platform facilitation fee (Take Rate) levied by Bero for its intermediation services.

6.2. The User is hereby informed that Bero employs a Dynamic Pricing Engine. During periods of elevated market tightness (where demand exceeds available supply within a specific H3 hexagonal grid), a surge multiplier is applied to the base price.

6.3. The dynamic multiplier is determined by a sigmoid function designed to dampen volatility, capped at a predefined maximum (e.g., 2.0x) to prevent excessive price shocks. The sensitivity of this multiplier is constantly calibrated using a Bayesian Hierarchical Model estimating real-time price elasticity. The Client shall always be presented with the final, surged price in a single, consolidated figure prior to confirming the Service Request, ensuring full compliance with the prohibition against drip pricing.

Pricing Component	Description and Algorithmic Determination
Base Service Fee	The foundational cost of the specific vocational task, determined by standard market rates and task complexity.
Dynamic Multiplier	An algorithmically derived factor based on the ratio of Demand to Supply within the relevant H3 spatial index, capped strictly at a 2.0x maximum.
Platform Facilitation Fee	A commission (Take Rate) ranging between 10% to 15% of the gross transaction value, deducted by Bero for maintaining the technological infrastructure and Escrow services.
Applicable Taxes	Statutory Goods and Services Tax (GST) as mandated by the Government of India.

7. Escrow-Style Payment Hold Model

7.1. To mitigate risks associated with information asymmetry and payment default, Bero mandates that all financial transactions be routed through its proprietary payment architecture.

7.2. Bero operates strictly in compliance with the Reserve Bank of India (RBI) Master Direction on Regulation of Payment Aggregators. Upon the confirmation of a Service Request, the Client's funds are captured and deposited into a segregated Escrow Account maintained with an authorised Scheduled Commercial Bank in India.

7.3. These funds are held in trust and are strictly segregated from Bero's operational capital. Credits and debits to this Escrow Account are restricted to permissible transactions under the RBI Master Directions.

7.4. Funds shall only be released and disbursed to the Service Professional's designated bank account upon the dual-confirmation of job completion by both the Client and the Service Professional through the Platform interface. In the event a Client fails to confirm completion, funds will be automatically disbursed following the expiry of a twenty-four (24) hour holding period, provided no formal dispute has been lodged via the in-app grievance mechanism.

8. Cancellation Policies

8.1. Bero enforces a balanced cancellation policy in strict adherence to Rule 4(7) of the Consumer Protection (E-Commerce) Rules, 2020, which prohibits e-commerce entities from imposing unilateral cancellation charges unless the platform bears equivalent costs.

8.2. A Client may cancel a Service Request without incurring any penalty within a designated grace period following the Service Professional's acceptance.

8.3. If a Client initiates a cancellation after the grace period, and the Service Professional has already commenced travel as verified by the H3 spatial tracking module, a nominal cancellation fee shall be levied. This fee is transferred in its entirety to the Service Professional to compensate for incurred travel expenses and opportunity costs, ensuring equitable treatment.

9. Bayesian Reputation System and Mandatory Ratings

9.1. The Platform relies on an advanced Bayesian Reputation System rather than simple arithmetic averages. A Service Professional's "Trust Score" is modeled as a random variable following a Beta distribution, and the visible score represents the Lower Bound of the Wilson Score Confidence Interval. This explicitly penalizes uncertainty and requires consistent high-quality performance.

9.2. To safeguard the integrity of the rating ecosystem and prevent grade inflation or retaliatory reviews, Bero deploys a Bayesian Truth Serum (BTS) protocol. Users are scored on the statistical truthfulness of their reporting. Submitting fraudulent, collusive, or malicious ratings constitutes a material breach of this Agreement and may result in immediate account termination.

10. Suspension and Termination

10.1. Bero reserves the unilateral right to suspend, restrict, or permanently terminate Your access to the Platform without prior notice if You breach any provision of this Agreement, violate applicable laws, or engage in conduct that threatens the operational integrity of the Platform.

10.2. Upon termination, Your right to utilize the Platform shall cease immediately. Any outstanding financial obligations, including pending Escrow disbursements or cancellation fees, shall survive the termination of this Agreement and remain legally enforceable.

11. Intellectual Property Rights

11.1. Bero retains absolute and exclusive ownership of all rights, title, and interest in and to the Platform. This includes, without limitation, the source code, the Bipartite Graph Matching Engine, the Dynamic Pricing algorithms, the integration of the H3 Hierarchical Hexagonal Spatial Index, user interface designs, trademarks, and proprietary data models.

11.2. Subject to Your compliance with these Terms, Bero grants You a limited, non-exclusive, non-sublicensable, revocable, and non-transferable license to access and use the Platform solely for its intended commercial purpose. You are expressly prohibited from reverse-engineering, decompiling, scraping, or algorithmically manipulating the Platform.

12. Prohibited Conduct

While accessing the Platform, You strictly agree not to:

12.1. Engage in circumvention, commonly referred to as "leakage," by utilizing the Platform to identify a matching party and subsequently executing the transaction offline to evade Platform facilitation fees.

12.2. Submit fraudulent, fictitious, or speculative Service Requests.

12.3. Upload malicious code, trojans, or execute Denial of Service (DoS) attacks designed to impair the Platform's infrastructure.

12.4. Engage in discriminatory, harassing, or abusive behavior toward any other User or Bero personnel.

13. Force Majeure

Bero shall be excused from performance under this Agreement to the extent that such performance is prevented, delayed, or obstructed by causes beyond its reasonable control. Such Force Majeure events include, but are not limited to, acts of God, natural disasters, epidemiological pandemics, internet service provider failures, telecommunications outages, government directives, strikes, or civil unrest.

14. Limitation of Liability and Indemnification

The stipulations governing the limitation of Bero's liability and Your indemnification obligations are exhaustively detailed in the **LIABILITY DISCLAIMER** document, which is incorporated herein by reference and forms an essential part of this Agreement.

15. Dispute Resolution, Governing Law, and Arbitration

The governing law of this Agreement shall be the laws of the Republic of India. The mandatory protocols for dispute resolution, including internal grievance mechanisms and binding arbitration, are detailed exhaustively in the **DISPUTE RESOLUTION POLICY**, which is incorporated herein by reference and forms an essential part of this Agreement.